

Superior Court of the State of California
County of Orange
TENTATIVE RULINGS FOR DEPARTMENT CM08
Temporary Judge Catherine Evans

Date: 09/09/2026

Court Room Rules and Notices

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#	Case Name	Tentative
1	Felix de Flores - Trust; 30-2025-01514581	Motions to Quash (3) Specially Appearing Respondent Jose Antonio Palacio's Motion to Quash Service of Verified Petition for Lack of Personal Jurisdiction (ROA 71) is GRANTED. Specially Appearing Respondent Luz Maria Palacio's Motion to Quash Service of Petition for Lack of Personal Jurisdiction (ROA 86) is GRANTED. Pursuant to CCP §§ 418.10 and 581(h), specially appearing respondents Jose Antonio Palacio and Luz Maria Palacio (Respondents) move to quash service of the petition on the ground they were not personally served with the petition. "Probate proceedings are proceedings in rem. A superior court has jurisdiction to determine the interests of all parties connected with the property of a decedent based on the property's location within the state." (<i>Capra v. Capra</i> (2021) 58 Cal.App.5th 1072, 1082-1083; <i>see also Estate of Kampen</i> (2011) 201 Cal.App.4th 971, 1003 ["The jurisdiction of the probate court is in rem and the res is the decedent's estate."].) Because it is an in rem proceeding, a probate matter finally resolves all conflicting rights and binds the "whole world". As the California Supreme Court explained in <i>In re Radovich's Estate</i> (1957) 48 Cal.2d 116, 121: "the jurisdiction of the probate court is a jurisdiction in rem; [] an heirship proceeding is not an ordinary civil action, but a specialized proceeding in rem. The res is the right of heirship and distribution

		and as to that issue the decree is binding on the whole world." (See also <i>Bodine v. Superior Court</i> (1962) 209 Cal.App.2d 354, 359-360 ["Such a proceeding is not an ordinary civil action, but a specialized proceeding in rem." (Id at p. 383.) "So it has been said that such heirship decree [is] conclusive against all persons as the basis for the decree of distribution which [is] to follow; it settles the rights of all persons claiming as heirs of the decedent, whether or not they are named in the complaint or personally served with summons and whether or not they were individually named in [the] notice. . . . The decree is not one in personam in favor of one of the parties against another." Citations and internal quotation marks omitted.].) Under the foregoing authorities, mail service of the petition on Respondents was sufficient to support this court's exercise of jurisdiction over claims asserted in the petition (ROA 2) seeking to contest a trust, remove a trustee, impose a surcharge in connection with the trustee's breach of fiduciary duties, compel an accounting, determine the rights of heirs and beneficiaries, and the invalidity of a no-contest clause. Mail service is not, however, sufficient to support this court's exercise of jurisdiction over the remaining claims asserted in the petition, i.e. financial elder abuse, Probate Code section 850, and fraud. Nor is mail service sufficient to support an award of damages, double damages, and punitive damages against the individual respondents. (Prob. Code, § 581; Code of Civ. Proc., § 413.10 et seq.) Because those claims are alleged in this petition, mail service of the petition is not sufficient. The motions are GRANTED. Respondent Luz Maria Palacio is ordered to give notice.
2	Rayhan – Other Probate; 30-2023-01348724	<u>Proceedings stayed 08/19/2026.</u>
3	Richley – Trust; 30-2025-01493436	CONTINUED TO 09/16/2026 AT 09:00 AM.

4	Johnson – Trust; 30-2024-01427023	<i>Johnson – Trust (2024-01427023) #4 Demurrer, MJOP, Motion to Quash, & Motion for Fees</i> Respondent Amy Lynn Bromley’s Demurrer to Petition (ROA 59) is OVERRULED. Respondent Amy Lynn Bromley’s Motion for Judgment on the Pleadings (ROA 61) is DENIED. Respondent Amy Lynn Bromley’s Motion to Quash All Petitioner-Initiated Subpoenas and for Stay of All Petitioner-Initiated Discovery Pending Ruling on Demurrer (ROA 60) is DENIED as moot. Respondent Amy Lynn Bromley’s Motion for Attorney Fees and Costs Pursuant to Probate Code §17211 (ROA 62) is DENIED. Respondent Amy Lynn Bromley’s Request for Judicial Notice (ROA 53) is GRANTED as to items 1, 2, and 3 and DENIED as to items 4 and 5. This proceeding arises out of the Patricia J. Johnson Revocable Trust dated February 11, 2019 (Trust). According to the petition, the settlor of the Trust, Patricia J. Johnson, passed away on January 8, 2023. (ROA 1 at 5:16-17.) Thereafter, her daughter Amy Lynn Bromley (Amy) became trustee. Pursuant to the terms of the Trust when it was created, Amy was to receive 50% of the Trust assets and her brothers Steven Edward Johnson (Steven) and Russell Phillip Johnson would each receive 25%. (ROA 2 at 3:18-27.) Under the terms of a document entitled “Chattel Schedule,” executed in October 2019, Amy allegedly was to receive receive 100% of the real property (the primary Trust asset), while Steven and Rusell would receive “Proceeds of Unsecured Promissory Note in the Sum of \$500,000 from Amy.” (ROA 2 at 4:23-5:14.)

	In September 2024, Steven’s wife, Petitioner Tricia M. Johnson (Tricia), filed a petition (Petition) seeking, in part, to void the Chattel Schedule on the grounds of the undue influence and diminished capacity. Steven had been diagnosed with dementia, so Tricia filed on his behalf pursuant to a financial power of attorney. (ROA 2 at 2:10-14.) Amy filed this demurrer and motion for judgment on the pleadings (MJOP), challenging the Petition on the following grounds: (1) the Petition is time-barred because it was filed more than 120 days after service of notice of the trust administration pursuant to Probate Code section 16061.7; (2) Tricia lacks standing to pursue the Petition because the power of attorney pursuant to which she filed it is void based on Steven’s incapacity (and Tricia did not seek to substitute in as a successor in interest following Steven’s death); and (3) Tricia prosecuted the Petition in bad faith after Steven’s death, when her authority as attorney in fact was terminated by operation of law. Because the demurrer and motion for judgment on the pleadings are based on identical grounds, the court does not address the potential procedural problems of the demurrer but proceeds to address the legal theories upon which the demurrer and MJOP rest. Both a demurrer and an MJOP must be based on grounds that appear on the face of the pleading and/or in matters that may be judicially noticed. (<i>Simple Avo Paradise Ranch, LLC v. Southern California Edison Co.</i> (2024) 102 Cal.App.5th 281, 298–299 [“A demurrer can be used only to challenge defects that appear on the face of the complaint or from matters outside the pleading that are judicially noticeable. [Citations.] ‘To survive a demurrer, the complaint need only allege facts sufficient to state a cause of action.’ [Citation.] The demurrer admits the truth of all material facts properly pleaded, including all ultimate facts alleged, but not contentions, deductions or conclusions of fact or law”];
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	<i>Spencer v. City of Palos Verdes Estates</i> (2023) 88 Cal.App.5th 849, 861 [“Judgment on the pleadings is akin to a demurrer and is properly granted only if the complaint does not state facts sufficient to state a cause of action against that defendant. [Citations.] The grounds for the motion must appear on the face of the complaint, and in any matters subject to judicial notice. [Citation.] The court accepts as true all material factual allegations, giving them a liberal construction, but it does not consider conclusions of fact or law, opinions, speculation, or allegations contrary to law or judicially noticed facts”].) Amy’s arguments that: (1) Tricia lacks standing to file the petition because the power of attorney was void and (2) Tricia prosecuted the petition in bad faith after Steven’s death rely on evidence outside of the Petition, which are not subject to judicial notice. Accordingly, as to those grounds, the demurrer is OVERRULED and the MJOP is DENIED. The argument that Tricia did not properly seek to substitute in as successor in interest also relies on evidence outside of the Petition. Amy, however, made no request that the court take judicial notice of any documents regarding the substitution. In any case, the court substituted Tricia into the proceeding as Steven’s successor in interest on December 29, 2025. (ROA 28.) Accordingly, as to that ground, the demurrer is OVERRULED and the MJOP is DENIED. This leaves only the time-bar argument. Amy argues she served sufficient notice under Probate Code section 16061.7 on or about March 1, 2023 so the Petition, which was filed more than 120 days later, is time-barred. While the Petition acknowledges notice was sent on March 1, 2023, it asserts that notice was deficient. (ROA 2 at ¶¶ 38-42.) In deciding the demurrer and the MJOP, the court must accept the assertion of deficient notice as true. “A demurrer based on a statute of limitations will not lie where the action may be, but is not necessarily, barred. In order for the bar ... to be raised by demurrer, the defect must
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		clearly and affirmatively appear on the face of the complaint; it is not enough that the complaint shows that the action may be barred.”] (<i>Coalition for an Equitable Westlake/MacArthur Park v. City of Los Angeles</i> (2020) 47 Cal.App.5th 368, 376, internal quotation marks and citations omitted.) Amy suggests the court should decide the issue as a matter of law. It cannot. First, the notice is not attached to the Petition, so it is outside the Petition and is not subject to judicial notice (which was not requested). Second, the Petition alleges the notice was defective because it did not set forth certain statutory language required by Probate Code section 16061.7 (h). If that allegation is correct, the notice was deficient. The Demurrer is OVERRULED and the MJOP is DENIED on the time-bar grounds. The demurrer is OVERRULED. The MJOP is DENIED. The associated motion for attorney fees and costs is also DENIED. Tricia is directed to give notice.
5	Rutherford - Trust; 30-2025-01532759	<i>Rutherford – Trust (2025-01532759) #5 Demurrer & Motion to Strike</i> Respondent John M. Rutherford’s Demurrer (ROA 9) is OVERRULED in part and SUSTAINED in part as set forth below. Respondent John M. Rutherford’s Motion to Strike (ROA 10) is DENIED. I. PETITION This proceeding arises out of a family trust created by settlors John R. Rutherford and Mona Lee Rutherford on March 21, 2001 (Trust). John Rutherford passed away on August 30, 2011. Mona Lee Rutherford passed away on October 6, 2024. Upon Mona’s passing, the settlors’ children, Petitioner Robin Lee Nesteruk and Respondent John M. Rutherford, became acting successor co-trustees of the Trust. Under the terms of the Trust, Petitioner and Respondent were to receive equal distributions of Trust Assets.

On December 12, 2025, Petitioner filed her petition, which asserts the Trust requires the co-trustees to act unanimously on Trust matters but Respondent has refused to cooperate with Petitioner and, without Petitioner's knowledge or involvement, marketed three properties belonging to the Trust (the Nevada Properties) and was in the process of having them sold. The Petition alleges Respondent signed a purchase and sale agreement to sell the Nevada Properties for \$4,150,000 but Petitioner learned of the sale from the escrow company and was able to stop the sale before it occurred. Based on that conduct as well as other alleged wrongdoing including Respondent's refusal to: (i) co-administer the trust; (ii) inventory and distribute personal the personal property belonging to the Trust; (iii) sell a Trust property located in Corona, California; and (iv) pay Trust related costs including property taxes, Petitioner seeks an order removing or suspending Respondent as trustee and alleges claims of breach of trust, breach of fiduciary duty, and fraud.

II. DEMURRER

Respondent demurs to the third cause of action for breach of trust, fourth cause of action for breach of fiduciary duty, and fifth cause of action for fraud on the grounds that each cause of action fails to state sufficient facts and is uncertain.

Respondent argues the third cause of action for breach of trust and fourth cause of action for breach of fiduciary duty fail to state a claim because they seek damages of at least \$4,150,000 (apparently representing the sale price Respondent had agreed to for the Nevada Properties). Respondent argues that the damages are speculative and do not represent an actual loss because Petitioner was able to stop the sale.

“It is not the ordinary function of a demurrer to test the truth of the plaintiff's allegations or the accuracy with which he describes the defendant's conduct. A demurrer tests only the legal sufficiency of the pleading. [Citation.]’ [Citation.] In reviewing the ruling on a demurrer, ‘the question of plaintiff's ability to prove these allegations, or the possible difficulty in making such proof does not concern the reviewing court [citations]. . . .’ [Citation.] ‘To survive a demurrer,

	the complaint need only allege facts sufficient to state a cause of action; each evidentiary fact that might eventually form part of the plaintiff's proof need not be alleged. [Citation.]” (<i>Ferrick v. Santa Clara University</i> (2014) 231 Cal.App.4th 1337, 1341.) A complaint “is sufficient if it alleges ultimate rather than evidentiary facts.” (<i>Doe v. City of Los Angeles</i> (2007) 42 Cal.4th 531, 550.) “Ultimate facts are those ‘on which liability depends,’ as distinguished from both the evidence proving those facts [citation] and conclusions of law.” (<i>Estes v. Eaton Corp.</i> (2020) 51 Cal.App.5th 636, 643, fn. 2.) In other words, California operates under notice pleading standards. (<i>Morris v. JPMorgan Chase Bank, NA</i> (2022) 78 Cal.App.5th 279, 304, fn. 14.) This is, in part, because ambiguities in a pleading “can be clarified under modern discovery procedures.” (<i>Khoury v. Maly’s of California, Inc.</i> (1993) 14 Cal.App.4th 612, 616.) In other words, a cause of action is sufficiently stated if it asserts the required elements of the claim. Breach of trust and breach of fiduciary duty claims each rely upon allegations of duty, breach, and damages. Petitioner alleges Respondent is a trustee and she is a beneficiary. A trustee has fiduciary duties to manage a trust for the benefit of the beneficiaries. (<i>Moeller v. Superior Court</i> (1997) 16 Cal.4th 1124, 1133–1134.) “If the trustee violates <i>any</i> duty owed to the beneficiaries, the trustee is liable for breach of trust.” (<i>Id.</i> at p. 1134; Prob. Code, § 16400.) Petitioner alleges Respondent violated his duty as a trustee (arranging for the sale of the Nevada Properties without informing Petitioner, refusing to co-administer the trust, etc.). Finally, she alleges damages resulting from violation (payment of bills for the Corona property, etc.) The petition sufficiently states a claim for breach of trust. The breach of fiduciary duty claim relies on the same factual allegations. Petitioner alleges a fiduciary duty (the duty of a trustee), a breach (arranging for the sale of the Nevada Properties without informing Petitioner, refusing to co-administer the trust, etc.), and resulting damages (payment of taxes on the Corona property, etc.) The petition sufficiently states a claim for breach of fiduciary duty. Petitioner’s request that damages be awarded in the amount not less than \$4,150,000 on these two claims does not eradicate the sufficient
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pleading of the claim. As the Petition specifically recognizes, the amount of damage is subject to proof. Respondent's demurrers to the third and fourth causes of action are **OVERRULED**.

Regarding the fifth cause of action for fraud, Respondent argues Petitioner has no standing to bring the claim because the alleged misrepresentations were made to third parties and not to Petitioner and the only alleged damages, i.e. attorney fees, are not recoverable as fraud damages under California law. The fifth cause of action appears to be some combination of a claim that Respondent committed fraud against the buyer of the Nevada Properties and committed fraud by concealment against Petitioner. Petitioner does not, however, have standing to seek recovery of damages for any harm suffered by the buyer of the Nevada Properties. Further, the concealment claim is confusing and appears to be missing some critical elements. To establish fraudulent concealment, a plaintiff must prove: (1) concealment or suppression of a material fact; (2) by a defendant with a duty to disclose the fact to the plaintiff; (3) the defendant intended to defraud the plaintiff by concealing or suppressing the fact; (4) the plaintiff was unaware of the fact and would, with knowledge of the concealed or suppressed fact, have acted differently; and (5) plaintiff sustained damage as a result. (*Graham v. Bank of America, N.A.* (2014) 226 Cal.App.4th 594, 606.)

Further, the damages Petitioner claims in connection with the fraud cause of action are limited to attorney fees incurred in stopping the sale of the Nevada Properties and in bringing this proceeding. Generally, attorney fees are not recoverable unless authorized by statute or contract. (Code of Civ. Proc., § 1021.) While the tort of another doctrine is an exception to the general rule, Petitioner does not allege sufficient facts to invoke that exception.

For the foregoing reasons, Respondent's demurrer to the fifth cause of action for fraud is **SUSTAINED** with leave to amend. Petitioner has 20 days in which to amend the fifth cause of action for fraud.

		III. MOTION TO STRIKE Respondent's motion to strike attacks the third, fourth, and fifth causes of action on the ground they are not drawn in conformity with the laws of this state. It also seeks to strike the prayer for punitive damages because it is derivative of the fraud claim and, alternatively, is not supported by facts suggesting malice, fraud, or oppression. In addition, the motion to strike seeks to strike all allegations regarding respondent's drug use, employment history, and criminal history. Respondent's argument that the third, fourth, and fifth causes of action are not drawn in conformity with California law is duplicative of the arguments made in his demurrer and are, therefore, MOOTED by the ruling on the demurrer. Respondent's argument that the punitive damages claim is derivative of the fraud claim misreads the petition, which does not tie the punitive damages to the fraud claim. (See ROA 2, ¶ 11.) Punitive damages are available on breach of trust and breach of fiduciary duty claims. The allegation that Respondent attempted to sell substantial Trust assets without any knowledge or involvement by his cotrustee could, if proven true, support a finding of malice, fraud, or oppression. Accordingly, the motion to strike is DENIED as to the prayer for punitive damages. Finally, Respondent argues the allegations regarding his alleged drug use, employment history and criminal behavior should be stricken because they are irrelevant, more prejudicial than probative, and are inadmissible character evidence. These are arguments against admission of evidence. A pleading is not evidence. Accordingly, the motion to strike is DENIED as to its remainder. Petitioner is directed to give notice.
6	Randovic - Trust; 30-2024-01437165	<i>No Tentative Ruling.</i>
7	Aaron - Trust; 30-2025-01483366	<i>No Tentative Ruling.</i>

8	Horwich - Trust; 30-2018-01045532	<i>Horwich – Trust (2018-01045532) # Motion to Quash</i> The court does not provide a tentative ruling on Respondent Holly M. Emge’s Motion for Order Quashing Service of Civil Subpoena for Personal Appearance or Alternatively for Protective Order on Production of Documents (ROA 2253) as it wishes to hear from the parties on certain issues as forth below. By her motion, Respondent Holly Emge seeks to quash a subpoena apparently calling for her to produce certain documents. However, neither the motion nor the supporting documents present the subject subpoena for the court’s review. Accordingly, the court cannot address moving party’s assertion that the subpoena was not properly served or that the requested documents are protected by the attorney work product doctrine and/or the attorney-client privilege. Moving party should be prepared to address the absence of this critical document. Finally, on August 6, 2026, Judge Rowe ordered Robert Horwich “to authorize the release of all billing statements regarding money paid from the trust or concerning trust litigation from Brower Law Group, Greenberg Gross, and Holly Emge, Esq. to be given to Jeffrey Horwich.” (ROA 2303, emphasis added.) The parties should be prepared to address whether that order addresses, in any fashion, the instant motion to quash

